

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

14. TREVOR GREEN V. TIANNA SAUERS

22FL0923

Petitioner filed a Request for Order (RFO) on June 15, 2026, requesting child custody and parenting plan orders. The parties were not referred to Child Custody Recommending Counseling (CCRC). A review hearing was set for September 17, 2026.

Petitioner filed an ex parte application for emergency custody orders on June 24, 2026. On June 29, 2026, the court denied the request on an ex parte basis but did refer the parties to an emergency set CCRC appointment on August 12, 2026 and a review hearing on September 24, 2026. Petitioner filed an RFO on June 29th making the same requests as set forth in the ex parte application.

Petitioner filed a Proof of Service of Summons on June 30, 2026.

Parties filed a Stipulation, which the court adopted as its order on July 1, 2026, regarding custody and parenting plan orders.

Upon review of the court file, there are no Proofs of Service filed showing either RFO was served. The court drops the June 15th RFO from calendar. The court advances the review hearing set for September 24th and drops the hearing from calendar due to the failure to properly serve Respondent.

All prior orders remain in full force and effect.

TENTATIVE RULING #14: UPON REVIEW OF THE COURT FILE, THERE ARE NO PROOFS OF SERVICE FILED SHOWING EITHER RFO WAS SERVED. THE COURT DROPS THE JUNE 15TH RFO FROM CALENDAR. THE COURT ADVANCES THE REVIEW HEARING SET FOR SEPTEMBER 24TH AND DROPS THE HEARING FROM CALENDAR DUE TO THE FAILURE TO PROPERLY SERVE RESPONDENT. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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15. CARA LEVIN-DIAZ V. ISMAEL DIAZ

22FL0125

Petitioner filed a Request for Order (RFO) on June 22, 2026, seeking orders modifying the current parenting plan orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on July 29, 2026, and a review hearing set for September 17, 2026. Respondent was personally served with some, but not all the required documents, on July 1, 2026.

Both parties appeared at CCRC and reached a full agreement. A copy of the agreement was prepared on July 29, 2026, and mailed to the parties on July 30th.

Respondent has not filed a Responsive Declaration.

The court finds good cause to proceed with the RFO as both parties appeared at CCRC, fully participated, and reached a full agreement. The court finds the agreement of the parties to be in the best interests of the minors. The court adopts the agreement as set forth in the July 29th CCRC report.

All prior orders not in conflict with these orders remain in full force and effect.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #15: THE COURT FINDS GOOD CAUSE TO PROCEED WITH THE RFO AS BOTH PARTIES APPEARED AT CCRC, FULLY PARTICIPATED, AND REACHED A FULL AGREEMENT. THE COURT FINDS THE AGREEMENT OF THE PARTIES TO BE IN THE BEST INTERESTS OF THE MINORS. THE COURT ADOPTS THE AGREEMENT AS SET FORTH IN THE JULY 29TH CCRC REPORT.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE